

26STCV01295 26STCV01295

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C07%2F02%2F2026

Source SHA-256: 297a0c099aa78209cbf03af6b5c19cfdd57a7e23accc97537f7ac0db439b0bf1

Case Number: 26STCV01295 Hearing Date: July 2, 2026 Dept: 414

26STCV01295

PARDO v. GOLDMAN

Thursday,

July 2, 2026

[TENTATIVE] ORDER SUSTAINING DEMURRER AND GRANTING THE MOTION TO STRIKE

I.

BACKGROUND

The complaint alleges that Defendant owns real property that is situated above Plaintiff's real property. The properties are bordered by a brick retaining wall. Defendant's multiple ficus trees are leaning heavily onto Plaintiff's property and is causing the wall to fall onto Plaintiff's property. Plaintiff alleges claims for (1) private nuisance, (2) trespass, (3) negligence, and (4) injunctive relief.

Defendant

demurs to the private nuisance claim for failure to state a claim and based on uncertainty. Defendant separately moves to strike conclusory allegations to support punitive damages and the prayer for attorney's fees.

The

court has considered the motions, oppositions, and reply briefs.

II.

LEGAL STANDARDS

A

demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

A demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

A pleading is required to assert general allegations of ultimate fact. Evidentiary facts are not required. (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal. 4th 26, 47; Lim v. The.TV Corp. Internat. (2002) 99 Cal. App. 4th 684, 690.)

The court may, upon motion or at any time in its discretion and upon terms it deems proper: (1) strike out any

irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the Court. Code Civ. Proc., § 436 subd (a)-(b). Grounds for the motion to strike are limited to matters that appear on the face of the pleading or on any matter which the court shall or may take judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A. Defective service of the opposition.

Defendant argues that the court should not consider the oppositions because Plaintiff improperly served them by mail to Defendant Goldman at her residence, although she is represented by counsel.

The court has discretion to consider late papers in favor of the strong policy favoring disposition of the case on the merits. (Kapitanski v. Von's (1983) 146 Cal.App.3d 29, 32.) ["Judges are well aware of the unnecessary burdens placed on courts and counsel when strict compliance with local procedural rules results in the expenditure of unnecessary time and money for the preparation of later section 473 motions."].) Defendants have not shown any prejudice arising from the defective filing. (Id.) The Court has considered Defendant's reply briefs to both the demurrer and motion to strike.

B.

Nuisance

An actionable nuisance is defined in part as "[a]nything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property or unlawfully obstructs the free passage or use." (Lussier v. San Lorenzo Valley Water Dist. (1988) 206 Cal.App.3d 92, 99–100; Civ. Code, § 3479.) The interference must be "substantial, i.e., that it caused the plaintiff to suffer 'substantial actual damage'" and was unreasonable. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938.) However, "[w]here negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim. ... The nuisance claim 'stands or falls with the determination of the negligence cause of action' in such cases." (Melton v. Boustred (2010) 183 Cal.App.4th 521, 542; El Escorial Owners' Assn. v. DLC Plastering, Inc. (2007) 154 Cal.App.4th 1337, 1349 ["The torts of negligence

and nuisance ... frequently are, coexisting and practically inseparable.”].)

Plaintiff’s allegations of the first and third causes of action are based on the same facts, namely, that Defendant failed to maintain the retaining wall and remove the ficus trees that are damaging it and causing the wall to fall onto Plaintiff’s property. The trees drop hazardous berries onto Plaintiff’s property. (Complaint, ¶ 49.)

The nuisance claim is identical. It is based on Defendants’ failure to maintain the retaining wall, and the ficus trees drop berries onto Plaintiff’s property. (Complaint, ¶ 32-34.) Plaintiff’s opposing arguments lack merit.

Accordingly, demurrer to the first cause of action is sustained as it is duplicative of the negligence claim and “adds nothing to the complaint by way of fact or theory of recovery.” (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

Defendant’s claim that the complaint’s allegations are uncertain as to whether the applicable three-year statute of limitations bars the action lacks merit. Defendant does not cite any authority that requires Plaintiff to allege date of notice of the condition of the property.

In order for the court to sustain demurrer to the complaint based on a statute of limitations defect, “the defect must clearly and affirmatively appear on the face of the complaint. A demurrer will not lie where the action may be but is not necessarily barred.” (Citizens for a Responsible Caltrans Decision v. Department of Transportation (2020) 46 Cal.App.5th 1103, 1117; Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1398.)

Where the statute of limitations defect does not appear from the face of the complaint, Plaintiff is not obligated to anticipate the statute of limitations defense and allege facts to negate the bar. (Union Carbide Corp. v. Superior Court (1984) 36 Cal.3d 15, 25; United Western Medical Centers v. Superior Court (1996) 42 Cal.App.4th 500, 505 [“while a demurrer based on statute of limitations lies where the dates in question are shown on the face of the complaint, if those dates are missing, there is no ground for a general demurrer”].)

IV. MOTION TO STRIKE

To

support recovery of punitive damages the defendant must be guilty of oppression, fraud, or malice. (Civ. Code, § 3294 subd. (a).) The predicate acts to support the claim must be intended to cause injury or must constitute “malicious” or “oppressive” conduct as defined by statute. “Malice” is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294 subd. (c)(1); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [“malice involves awareness of dangerous consequences and a willful and deliberate failure to avoid them”].)

“Oppression” is defined as

“despicable conduct that subjects a person subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.”.) In other words, absent an intent to injure the plaintiff, the conduct must be “despicable” defined as “base, vile, or contemptible.” (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 724.)

Plaintiff

argues that Defendant's alleged failure to maintain the condition is sufficient because the complaint alleges that Plaintiff informed defendant of the condition several times, Defendant assured that action would be taken but did not follow through. These allegations do not rise to “despicable conduct” that subjects Plaintiff to cruel and unjust hardship. Conduct constituting negligence, gross negligence or recklessness is insufficient to support a claim for punitive damages. (*Dawes v. Superior Court* (1980) 111, Cal.App3d. 82, at 87.)

Plaintiff

argues that with respect to attorney's fees, it is distinctly possible that Plaintiff can recover fees under Cal. Code Civ. Procedure §1021.5, if the litigation affords an important public right. Plaintiff argues that injunctive relief can support fee awards if it vindicates a significant public interest.

Plaintiff

cites *Crespin v. Shewry* (2004) 125 Cal.App.4th 259 which involved a permanent injunction preventing the Department of Health Services from denying restricted-scope

Medi-Cal Program coverage to undocumented aliens for long-term care and dialysis.

(Id. at 262.) Plaintiff seeks injunctive relief to require Defendant to replace the retaining wall, remove the ficus trees and abate all nuisance conditions.

This is a mandatory injunction because it "has the effect of compelling the performance of a substantive act and necessarily contemplates a change in the relative position or rights of the parties at the time the injunction is granted or the decree entered." (Johnston v.

Superior Court In and For Los Angeles County (1957) 148 Cal.App.2d 966, 970.) In any event, this is a private dispute between two landowners that affects only the Plaintiff. Accordingly, the motion to strike the attorney fees prayer from the complaint is GRANTED.

V.

CONCLUSION

Based

on the foregoing, demurrer to the first cause of action for nuisance is SUSTAINED. The motion to strike is GRANTED.